State Nct Of Delhi vs Lucky Kapoor & Anr on 4 July, 2024

Author: Anup Jairam Bhambhani

Bench: Anup Jairam Bhambhani

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

\+ CRL.REV.P. 825/2024
STATE NCT OF DELHI
Th

versus
LUCKY KAPOOR & ANR.
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CORAM:
HON'BLE MR. JUSTICE ANUP JAIRAM BHAMBHAN
ORDER

% 04.07.2024 CRL.M.A. 19109/2024 (exemption) Exemption granted, subject to just exceptions. Let requisite compliances be made within 01 week. The application stands disposed of.

CRL.M.A. 19108/2024 (condonation of delay) By way of the present application filed under section 482 of the Code of Criminal Procedure 1973 ('Cr.P.C.'), the revision petitioner/State seeks condonation of 210 days' delay in filing the revision petition.

2. For the reasons stated in the application, which is duly supported by an affidavit, the application is allowed.

3. Delay in filing the revision petition is condoned.

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4. The revision petition is taken on Board.

5. The application stands disposed-of.

6. By way of the present petition filed under sections 397 and 401 read with section 482 of the Cr.P.C., the revision petitioner/State impugns order dated 26.07.2023 made by the learned ASJ-04

(West), Tis Hazari Courts, Delhi in case SC No.191/2021 ('impugned order'), arising from case FIR No. 1341/2015 dated 11.09.2015 under section 365 of the Indian Penal Code ('IPC') registered at P.S.: Rajouri Garden, New Delhi.

7. By way of the impugned order, the learned ASJ has been pleased to discharge the respondents, namely Lucky Kapoor and Tarun Bhalla from the case, while framing charges against the other 04 accused persons under section 364-A/34 IPC.

8. The reasoning, based on which the learned ASJ has discharged the respondents, is narrated in the following extracts of the impugned order :

> "I have gone through the contents of FIR which was recorded on the basis of statement made by complainant Rahul Singh as well as the statement u/s 161 Cr.P.C. as well as statement u/s 164 Cr.P.C. of victim Abhishek. The perusal of the said statement reveals that the victim Abhishek had assigned specific roles to accused persons namely Alok Kumar, Vishal, Manoj and Shadab. The statement u/s 161 Cr.P.C. of victim also reveals that initially, the aforesaid accused persons demanded a sum of Rs.10,000/-, then Rs. 20,000/-, then Rs. 40,000/- and thereafter, a sum of Rs. 2 Lakhs as ransom.
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> The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 08/07/2024 at 22:34:48 Perusal of the statement u/s 161 Cr.P.C. of victim Abhishek reveals that in respect of accused Lucky Kapoor and Tarun, he has only alleged that while he was kept in the said premises, accused Tarun and Lucky had come upstairs and in their presence, the other accused persons have stated to them that Abhishek had committed fraud with them and that is why, they have abducted Abhishek. Except this, no other role has been attributed to accused Tarun and Lucky. The statement u/s 164 Cr.P.C. of victim Abhishek reveals that he has not attributed any role to accused Tarun and Lucky in the commission of offence. Rather in statement u/s 164 Cr.P.C., victim Abhishek had specifically stated "Wahan par do ladke Lucky aur Tarun the, jo bekasoor hain, unhone muje kuch nahi kaha, baki logo ke khilaaf sakht karyavayi ki jaaye".

The combined effect of both the statements of victim Abhishek reveals that there is no incriminating material on record to connect accused Lucky Kapoor and Tarun Bhalla for commission of offence as mentioned in the charge-sheet, Accordingly, they are discharged in the present case. They are directed to furnish bail bonds u/s 437A Cr.P.C. in the sum of Rs. 20,000/- with one surety of the like amount within 03 working days from today."

(emphasis supplied)

9. Learned APP submits, that the learned ASJ has erred in discharging the respondents, proceeding only on the statement made by the victim Abhishek and taking that statement as the correct interpretation of the respondents' role in the offence which the State alleges they have committed under section 364-A and section 34 IPC.

10. Learned APP argues that the victim's interpretation of the role of the respondents in the offence cannot be taken as the judicial interpretation of such role; and whether or not, the respondents are guilty of commission of any offence, can only be decided after This is a digitally signed order.

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11. In particular, learned APP submits, that keeping " ..... a person in detention after such kidnapping or abduction ....." is in itself a part of the offence of kidnapping for ransom under section 364-A IPC; and that a reading of the impugned order shows that the victim has confirmed the presence of the respondents at the premises where he was kept in detention after being abducted.

12. Learned APP further argues that the presence of the respondents at the premises also brings them within the ambit of section 34 IPC, namely that the respondents also entertained the common intention to commit the offence under section 364-A IPC alongwith the other 04 co- accused persons.

13. Having heard learned APP appearing for the State and also having perused the impugned order, it is observed that the only basis on which the prosecution seeks to put the respondents through trial is the statement of the victim which has been para-phrased by the learned ASJ in the impugned order, as follows :"... ... while he was kept in the said premises, accused Tarun and Lucky had come upstairs and in their presence, the other accused persons have stated to them that Abhishek had committed fraud with them and that is why, they have abducted Abhishek. Except this, no other role has been attributed to accused Tarun and Lucky. The statement u/s 164 Cr.P.C. of victim Abhishek reveals that he has not attributed any role to accused Tarun and Lucky in the commission of offence. Rather in statement u/s 164 Cr.P.C., victim Abhishek had specifically stated "Wahan par do This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 08/07/2024 at 22:34:50 ladke Lucky aur Tarun the, jo bekasoor hain, unhone muje kuch nahi kaha, baki logo ke khilaaf sakht karyavayi ki jaaye"."

14. As per the evidence on record, the position therefore is, that the respondents had come upstairs to the premises where the victim was detained after he was abducted and the other co-accused persons informed the respondents why they had abducted the victim. Evidently therefore, as per the section 161 Cr.P.C. statement of the victim, the respondents were not the persons who had abducted him; the respondent came to the premises subsequent to the abduction and detention of the victim

there; and, the other co-accused persons informed the respondents the reason why they had abducted the victim at the premises.

15. Furthermore, even in his statement recorded under section 164 Cr.P.C., the victim has not attributed any role to the respondents in the commission of the offence and has in fact expressly exonerated them by saying that the respondents were blameless.

16. Also, the learned ASJ has recorded that there is no (other) incriminating material on record to connect the respondents to commission of the offence stated in the charge-sheet.

17. Upon a conspectus of the facts and circumstances of the case, this court is unable to discern anything amiss in the impugned order insofar as its correctness, legality or propriety is concerned.

18. In the opinion of this court therefore, even if the respondents were put through trial, there is no 'evidence' on record that the prosecution could possibly 'prove' against the respondents, to bring home guilt.

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19. In the circumstances, and within the scope and ambit of its revisional power under section 397 of Cr.P.C., this court is not persuaded to interfere with the impugned order.

20. The revision petition is accordingly dismissed.

21. Pending applications, if any, also stand disposed-of.

ANUP JAIRAM BHAMBHANI, J JULY 4, 2024 V.Rawat This is a digitally signed order.

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